

PROMISING RETURN PRACTICES

PRE-RETURN GERMANY - II

D9.1 - JANUARY 2026

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Funded by
the European Union

Name of practice	Chancenaufenthaltsrecht (Opportunity Residency)	
Dates	Entered into force on 31.12.2022, ended on 31.12.2025	
Target group	Possible return migrants (General)	
Geographic Scope	Country	Germany
	Regions	Europe
	Sub Region	North Europe
Actor(s)	Foreign Authorities	
Return Stages	Pre-Return	
Challenge addressed	Alternatives to Return	
Principles referred (implicit or explicit)	Human-rights–based approach Migrants’ Agency	

SUMMARY

The Opportunity Residence Right (Sec. 104c Residence Act) provides an 18-month residence permit for individuals holding a temporary toleration status, allowing them to transition toward a long-term legal residence permit. It is non-renewable, and during this limited period, holders are given the chance to acquire the necessary requirements for a long-term residence permit. The beneficiaries are not required to prove identity or income security, which lowers the barrier to switching.

The instrument aims to bridge the gap between “Duldung” and a long-term residency by incentivising the clarification of identity and integration into the labour market. Given that Duldung is characterised by uncertainty and restrictions that impede long-term integration, the Opportunity Residence Right aims to reduce the number of persons trapped in the “Duldung” status and prevent the return of individuals who are sufficiently integrated once their identity has been clarified.

Those eligible are individuals who have held a toleration permit (“Duldung” and “Duldung light”) for at least five years, independently of nationality or origin. The status includes unrestricted access to employment, access to language courses, and can be extended to spouses and unmarried minor children. However, the “Opportunity Residence Right” can only be issued if the person has continuously resided in Germany for five years by 30 October 2022. As a result, it does not offer a pathway for individuals who will enter Duldung status in the future.

BENEFITS/IMPACTS AND SHORTCOMINGS

By mid-2025, 226,506 people in Germany were under an obligation to leave, of whom 184,988 were tolerated (~80%) (Deutscher Bundestag, 2025a, p. 35). This represents a decline from 248,145 tolerated individuals at the end of 2022, before the Opportunity Residence Right was introduced, with the reduction attributed both to the programme and to an increase in deportations.

As of May 2025, 84,106 people had received the Opportunity Residence Right. Of these, 16,646 had successfully transitioned to a long-term residence permit (~19%), while 31,372 remained within the 18-month grant period (~37%) (Mediendienst Integration, 2025).

This contrasts with the figures estimated at the start of the programme, which suggested that 137,000 tolerated migrants had lived in Germany for more than five years and were eligible to apply (Peitz, 2025, p. 2).

Despite the benefits, only a small percentage of grantees manage to complete the transition within 18 months —namely less than one-fifth of the total 84,106 grantees. One significant challenge for these grantees is the requirement to clarify their identity within this timeframe. Migrants who cannot provide proof of identity— often due to a lack of cooperation from authorities in their country of origin or other circumstances beyond their control—must address this issue to become eligible for a long-term residence permit. Additionally, grantees who have not previously fulfilled integration requirements often find it difficult to meet all obligations at once. These obligations include learning German, attending the required integration course, passing the “Life in Germany” test, and securing stable employment to ensure long-term financial stability. The cut-off date rule (October 31, 2017) further limits eligibility, excluding many long-term tolerated migrants. Critics advocate for a more flexible, criteria-based approach that considers length of stay, progress in integration, and willingness to cooperate.

Political debate over the programme is divided. Some actors advocate easing requirements to increase successful transitions, while others—including far-right parties and members of the governing coalition— oppose it, citing risks of granting residence to individuals with unclear or falsified identity. The 2025 coalition agreement contains provisions for a new temporary residence right with stricter eligibility and employment

criteria.

KEY LESSONS

Regularisation may offer a credible exit from the precarious and temporary status of migrants. The *Chancenaufenthaltsrecht* has shown that regularization can provide a viable path out of long-term and chained tolerance status. Its design, particularly the opportunity for beneficiaries to participate in full integration activities over 18 months, is widely recognized as a positive innovation. This approach fosters cooperation, minimizes administrative disputes, and allows migrants to focus on their integration. Additionally, the program has facilitated better access to the labor market for participants, which has helped reduce dependence on the social security system.

Lowering procedural barriers can improve cooperation and enable meaningful integration. Regularisation mechanisms that permit applicants to participate in integration measures without having to meet certain requirements— often challenging due to factors beyond the migrant’s control, such as proving income security, language proficiency, or identity documentation— enable migrants and authorities to engage in a more constructive and solutions-oriented manner.

Time-limited or narrowly defined eligibility rules restrict the systemic impact of regularisation programmes. Instruments for regularisation that depend on strict cut-off dates or narrow eligibility windows risk benefiting only a small portion of the population that has been tolerated. Without ongoing or flexible criteria, these measures may not effectively address the structural persistence of chain toleration and its related uncertainties. The implementation of strict cut-off dates and short application windows has significantly reduced the number of beneficiaries. With the current coalition planning to phase out the *Chancenaufenthaltsrecht* and replace it with an even more restrictive and similarly time-bound mechanism, chain toleration is expected to remain a central aspect of Germany’s migration governance. This

approach continues to maintain a system that offers limited rights while allowing for the potential removal of the affected foreigners.

RECOMMENDATIONS

Extend access to regularisation programmes to reduce long-term uncertainty.

Regularisation programmes are more effective when eligibility is broad, flexible, and not limited by arbitrary cut-off dates. In Germany, this would mean extending the *Chancenaufenthaltsrecht* beyond 1 January 2026 and avoiding replacement by a mechanism with higher entry hurdles. The cut-off date for eligibility should be abolished, enabling any foreigner who has lived in Germany for five years to apply for the 18-month grant on a rolling basis.

Recognise genuine efforts to clarify identity and integrate. Regularization programs should consider obstacles that are beyond the migrant’s control, such as difficulties in obtaining identity documentation from their home countries. Allowing more time for identity verification and recognizing the efforts made toward integration during the grant period would enhance the chances of a successful transition to regular residency.

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